

Orders on IA.1

I.A. No.1 filed by the decree holder under Order 6 Rule 17 of CPC to amend the Execution Petition regarding the amounts stated in the Execution Petition in figures claiming that is typographical error.

The said application is supported with the affidavit of decree holder.

The JDr filed detailed objections.

On that basis the point for consideration is as under:

“Whether the decree holder made out sufficient grounds to amend the petition as prayed?”

Heard the arguments. Perused the materials on records. My finding on the above point is in the affirmative, for the following:

REASONS

The main contention of the decree holder is that the decree holder is entitled to add interest @ 15% on Rs.1,61,037/-. But the said figure has been mentioned as Rs. 1,16,037/- instead of Rs.1,61,037/-. On perusal of the record, it appears to be

typographical error while mentioning the figure in the application.

The objections raised by the JDr is treated as the objection to the main petition.

The said contention to be decided during the course of execution of this petition. It is relevant to note that the JDr has also filed objections to the main petition. When the Court considering the said objections, certainly the Court can decide about the entitlement of decree holder for the amount claimed in the petition. When the decree holder made out a prima facie case regarding amendment claiming i.e., typographical error particularly stating that number 6 and 1 inter-changed while typing the said figure. As such, the said rectification can be allowed and even allowing of such rectification could not cause any hardship to the JDr as the JDr is liable to pay the amount deserves to be received by the decree holder as per award passed in the main case. Accordingly, this Court is of the humble opinion that the decree holder has made out sufficient grounds to allow the IA No.1. Accordingly, the above point is answered in the affirmative and proceed to pass the

following:

ORDER

IA No.1 filed under Order 6 Rule 17 of CPC by the decree holder is hereby allowed.

Accordingly, the decree holder is permitted to amend the Execution Petition.

For amendment and amended petition by 10.12.2024.

(PADMA PRASAD)
II Addl. City Civil and Sessions Judge,
& Spl. Judge, Bengaluru.